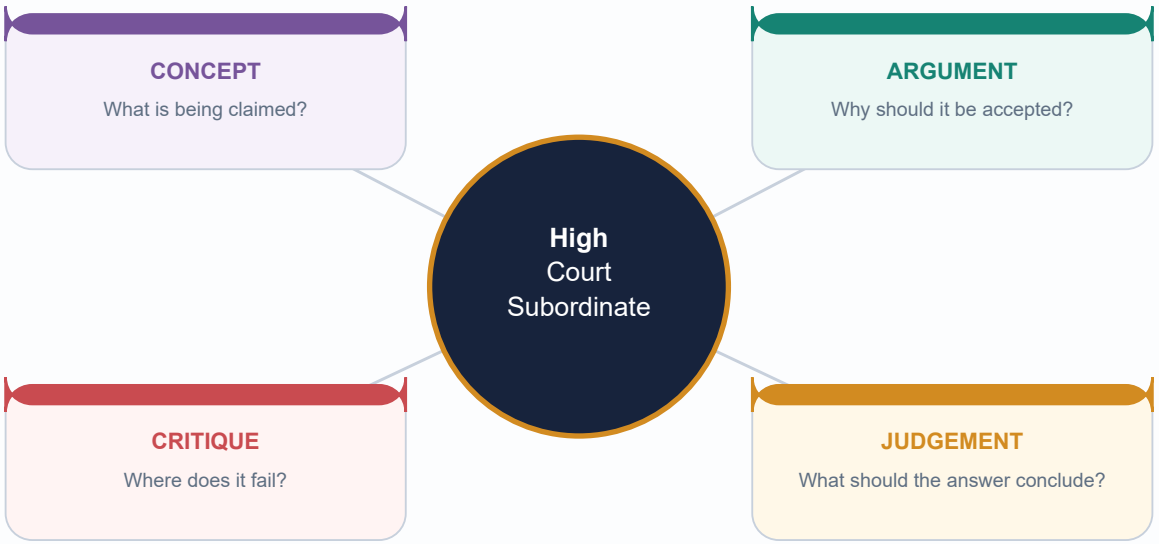
UPSC INDIAN POLITY

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains
Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth
Sources: High-Court.md + 21_High-Court-and-Subordinate-Courts.md
Learning cards: 38



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 34–36.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ book · □□ inference · □ current. *Advanced: optional deeper detail in advanced/21_High-Court-and-Subordinate-Courts.md — not required for any mark.*

MUST-KNOW FACTS

1. book · □□ inference · □ current. *Advanced: optional deeper detail in advanced/21_High-Court-and-Subordinate-Courts.md — not required for any mark.*

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Value
Articles	214–231 (HC); 233–237 (subordinate)
No. of HCs	□ **25** (some common to 2+ states/UTs)
HC strength, 1 July 2026	□ **1,122 sanctioned · 781 working · 341 vacant** (DoJ; re-verify before reuse)
HC judge retires	□ **62** (SC judge = 65)
SC collegium stage for HC appointment	CJI + **2 seniormost** SC judges
Writ article	□ **Art 226** (wider than SC's Art 32)

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea · Part 1

GS-II Indian Polity

INTRO & ORIGIN

 The **High Court** is the top of a state's judiciary and the protector of Fundamental Rights within the state. India has **one integrated judiciary**: SC → HCs → subordinate courts. The **7th Amdt (1956)** allows a **common HC** for two or more states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1 The High Court is the top of a state's judiciary and the protector of Fundamental Rights within the state. India has one integrated judiciary: SC →	**Dimension 2** HC writ power (Art 226) greater than SC (Art 32): HC issues writs for FRs AND any other purpose. Chandra
Dimension 3 Kumar (1997): HC writ jurisdiction = basic structure.	**Dimension 4** Qualification: citizen + 10 yrs judicial office OR 10 yrs HC advocate (no "distinguished jurist"

STATIC THEORY

- **HC writ power (Art 226) greater than SC (Art 32):** HC issues writs for FRs **AND any other purpose**. *Chandra

- Kumar (1997): HC writ jurisdiction = **basic structure**.*

- **Qualification:** citizen + **10 yrs judicial office OR 10 yrs HC advocate** (no "distinguished jurist"

- option, unlike SC).

- **Two stages:** the HC Chief Justice initiates a recommendation after consulting

- two seniormost HC colleagues; the Supreme Court collegium then considers it. HC-judge

MEMORY HOOK

HC writ power (Art 226) greater than SC (Art 32): HC issues writs for FRs AND any other purpose. *Chandra | Qualification: citizen + 10 yrs judicial office OR 10 yrs HC advocate (no "distinguished jurist" | Two stages: the HC Chief Justice initiates a recommendation after consulting

MUST-KNOW FACTS

1. The **High Court** is the top of a state's judiciary and the protector of Fundamental Rights within the state. India has **one integrated judiciary**: SC → HCs → subordinate courts. The **7th Amdt (1956)** allows a **common HC** for two or more states.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Core idea · Part 2

GS-II Indian Polity

INTRO & ORIGIN

transfers use a broader consultation process.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Subordinate courts (3 tiers)

GS-II Indian Polity

INTRO & ORIGIN

 District Judge = Sessions Judge (top) → Subordinate Judge / Chief Judicial Magistrate → Munsiff / Judicial Magistrate. District judges appointed by the **Governor in consultation with the HC** (Art 233). A **death sentence needs HC confirmation**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. District Judge = Sessions Judge (top) → Subordinate Judge / Chief Judicial Magistrate → Munsiff / Judicial Magistrate. District judges appointed by the **Governor in consultation with the HC** (Art 233). A **death sentence needs HC confirmation**.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Subordinate courts (3 tiers)

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

 HC judge takes oath before the **Governor**; can be **transferred** to another HC.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 □ HC judge takes oath before the Governor; can be transferred to another HC.	**Dimension 2** □ HC has supervisory jurisdiction (Art 227) over all courts/tribunals (except military).
Dimension 3 □ NALSA (Legal Services Authorities Act 1987) → free legal aid + Lok Adalats (Art 39A).	**Dimension 4** For the authority ladder and the ordinary/Permanent Lok Adalat, Family Court and Gram Nyayalaya distinctions, use Lok-Adalats-and-Other-Courts.md.

STATIC THEORY

- □ HC has **supervisory jurisdiction (Art 227)** over all courts/tribunals (except military).

- □ **NALSA** (Legal Services Authorities Act 1987) → free legal aid + **Lok Adalats** (Art 39A).

- For the authority ladder and the ordinary/Permanent Lok Adalat, Family Court and Gram Nyayalaya distinctions, use Lok-Adalats-and-Other-Courts.md.

MUST-KNOW FACTS

1. HC judge takes oath before the **Governor**; can be **transferred** to another HC.

2. HC has **supervisory jurisdiction (Art 227)** over all courts/tribunals (except military).

3. NALSA (Legal Services Authorities Act 1987) → free legal aid + **Lok Adalats** (Art 39A).

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ □□ **Case pendency and HC vacancies** keep judicial reforms — NALSA/Lok Adalats, e-Courts and the All India Judicial Service debate — in the news. The Department of Justice vacancy statement dated **1 July 2026** records **1,122 sanctioned High Court posts, 781 working judges and 341 vacancies**. These figures are a dated snapshot, not a durable constitutional fact. □ □□ Two 2025 controls now belong in every subordinate-judiciary answer. *Rejanish K.V. v. K. Deepa* (2025) prospectively overruled *Dheeraj Mor* and opened direct District-Judge recruitment to serving judicial officers meeting the Court's combined-experience and age conditions. *All India Judges Association v. Union of India* (20 May 2025) restored a minimum three-year Bar-practice requirement for future Civil Judge (Junior Division) recruitments and reworked promotional routes. These are judicially prescribed current rules, not words found in Articles 233–234. □□ The full jurisdiction, the subordinate-court tiers, the traps and the Mains angles are all held **in this file**. *Advanced: optional deeper detail in advanced/21_High-Court-and-Subordinate-Courts.md — not required for any mark.*

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
Purpose: make this Core file independently able to answer directive-sensitive GS-II questions on the High Court's writ power, the Article 32 vs 226 distinction, superintendence and control over the district judiciary, the All India Judicial Service debate and the pendency/vacancy problem — without opening Advanced. Vacancy and pendency figures change constantly; treat every such number as □ and re-verify before dating it.

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 6.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
Writ power / Art 226 vs 32	"guardian of rights", "wider than SC", Analyse	Art 226 scope → why wider in purpose → Art 32's all-India reach → *L. Chandra Kumar* → verdict
Superintendence & control	"control over subordinate courts", Art 227, Examine	Art 227 → Art 235 control → Art 228 withdrawal → limits → verdict
Appointment / transfer	"collegium", "transfer of judges", Discuss	Art 217 → collegium role → Art 222 transfer → independence concerns → verdict
Subordinate judiciary reform	"All India Judicial Service", Comment	Art 233–235 design → AIJS case → federalism objections → qualified verdict
Independence of the judiciary	"guardian", basic structure, Critically examine	Art 226/227 as basic structure → tenure/oath → pendency/vacancy constraint → verdict
Access to justice	NALSA, Lok Adalats, pendency, Analyse	Art 39A → statutory legal-aid machinery → pendency data (□) → capacity reforms

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.1 Demand and directive map

HIGH

Foundation · 6.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The High Court, not the Supreme Court, is the citizen's first and widest constitutional court — Article 226 reaches further in purpose than Article 32, which is why the framers gave the States a court that protects both fundamental and ordinary legal rights.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.2 QUALIFIED THESIS OPTIONS: RECALL MAP

6.2 Qualified thesis options

V

Dimension 1 The High Court, not the Supreme Court, is the citizen's first and widest constitutional court — Article 226 reaches further in purpose than Article 32	**Dimension 2** The High Court's writ and superintendence powers make it the working guardian of the rule of law in the States, but a power the Constitution protects
Dimension 3 Control over the district judiciary (Article 235) is the constitutional guarantee of a locally independent judiciary; the All India Judicial Service d	**Dimension 4** Judicial independence at the High Court level is secured by design — appointment, tenure and transfer safeguards — but delivered only where the State

STATIC THEORY

- The High Court's writ and superintendence powers make it the working guardian of the rule of law in the States, but a power the Constitution protects as basic structure is being hollowed out in practice by vacancies and pendency.

- Control over the district judiciary (Article 235) is the constitutional guarantee of a locally independent judiciary; the All India Judicial Service debate is therefore a contest between national uniformity and federal judicial autonomy.

- Judicial independence at the High Court level is secured by design — appointment, tenure and transfer safeguards — but delivered only where the State and Union fill vacancies and fund the courts.

- Article 226's discretion is its discipline: because the High Court may decline relief where an adequate alternative remedy exists, the writ court remains a guardian of last resort rather than a substitute for the ordinary legal process.

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.2 Qualified thesis options

HIGH

Foundation · 6.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → two anchors (Article + case) → one qualification → verdict	3 units
15	Thesis → jurisdiction/design → case law → counter-argument (pendency/federalism) → graded verdict	5–6 units
20	Thesis → writ power → superintendence/control → appointment/transfer → reform (AIJS/pendency) → graded verdict	6–8 units + an "independence vs capacity" paragraph

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.3 Mark-scaled structures

HIGH

Foundation · 6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Writ	Issued to secure
Habeas corpus	Production of a detained person; tests the **legality of detention**
Mandamus	Command to a public authority to **do its legal duty** (not against a private person)
Prohibition	Stops a lower court/tribunal **exceeding jurisdiction** (before the order)
Certiorari	**Quashes** an order already passed **without/in excess of jurisdiction**
Quo warranto	Challenges a person's **holding of a public office** unlawfully

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

HIGH

Foundation · 6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Axis	Art 32 (Supreme Court)	Art 226 (High Court)
Nature	**Itself a Fundamental Right** (Ambedkar: "heart and soul")	A **constitutional power**, not a FR
Purpose	Only **FR** enforcement	FRs **and any other purpose** (wider)
Discretion	The remedy is a right; SC cannot ordinarily refuse	HC has **discretion** (e.g., alternative-remedy rule)
Territorial reach	**Whole of India**	HC's territory (extended by the 15th Amdt where the cause of action arises)

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

HIGH

Foundation · 6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

GS-II Indian Polity

INTRO & ORIGIN

Claim: the High Court's writ power is wider in purpose than the Supreme Court's. **Provision: Art 226** empowers a HC to issue the five writs for the enforcement of Fundamental Rights **"and for any other purpose"** (i.e., ordinary legal rights too); **Art 32** is confined to **Fundamental Rights**. **Mechanism:** a litigant with a non-FR legal grievance can reach the HC but not the SC under Art 32. **Limitation:** □□ "wider" refers to **purpose**, not reach — Art 32 runs across all of India while Art 226 is territorial.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.4 BANK A — WRIT JURISDICTION AND THE ARTICLE 32 VS 226 DISTINCTION: RECALL MAP

6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

V

Dimension 1
Claim: the High Court's writ power is wider in purpose than the Supreme Court's. Provision: Art 226 empowers a HC to issue the five writs for the enfo

Dimension 2
Claim: territorial reach was deliberately expanded. Provision: Art 226(2) (inserted by the 15th Amendment, 1963) lets a HC issue writs to a government

Dimension 3
Claim: the writ power cannot be abolished. Case: L. Chandra Kumar v. Union of India (1997) held that judicial review under Art 226/227 (HC) and Art 32

Dimension 4
Claim: the "writ jurisdiction" is a defined set of five writs, each with a distinct target. Provision (Art 226, mirroring Art 32): the HC issues habea

STATIC THEORY

- **Claim:** territorial reach was deliberately expanded. **Provision: Art 226(2)** (inserted by the **15th Amendment, 1963**) lets a HC issue writs to a government/authority/person **outside** its territory if the **cause of action arises wholly or in part within** its jurisdiction. **Mechanism:** prevents a defendant escaping a HC merely by sitting elsewhere. **Limitation:** □□ still bounded by where the cause of action arises — not a national writ.

- **Claim:** the writ power cannot be abolished. **Case:** *L. Chandra Kumar v. Union of India (1997)* held that judicial review under **Art 226/227** (HC) and **Art 32** (SC) is part of the **basic structure** and cannot be excluded, even for tribunals. **Mechanism:** tribunal orders remain reviewable by a HC Division Bench. **Limitation:** □□ review tests legality/jurisdiction, not the merits afresh.

- **Claim:** the "writ jurisdiction" is a defined set of five writs, each with a distinct target. **Provision (Art 226, mirroring Art 32):** the HC issues **habeas corpus, mandamus, prohibition, certiorari and quo warranto**. **Mechanism:** each remedy answers a different illegality (see table). **Limitation:** □□ they are the *named* writs plus "directions/orders" — the HC is not confined to their technical English form.

- **Claim:** the HC is more than a writ court. **Provision:** it is a **court of record (Art 215)** with contempt power, exercises **appellate** civil/criminal jurisdiction over subordinate courts, and four chartered HCs (**Calcutta, Bombay, Madras, Delhi**) retain **original civil** jurisdiction alongside writ, admiralty, contempt and election matters. **Mechanism:** combines original, appellate and supervisory roles in one institution. **Limitation:** □□ original civil jurisdiction is the exception, not the norm across HCs.

- **Claim:** the HC's writ discretion is a self-imposed discipline. **Doctrine:** under **Art 226** a HC may **decline** relief where an **adequate alternative remedy** (statutory appeal/tribunal) exists — a rule of practice, not a bar; it does **not** apply where a fundamental right is violated, a fair procedure is denied, or an order is wholly without jurisdiction. **Mechanism:** channels routine disputes to the statutory ladder while keeping the constitutional door open for rights and jurisdictional failures. **Limitation:** □□ the rule is discretionary — the HC can always entertain a writ in a fit case.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.4 Bank A — Writ jurisdiction and the Article 32 vs 226 distinction

HIGH

Foundation · 6.5 Bank B — Superintendence, withdrawal and control over the district judiciary

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Tier	Civil side	Criminal side
Top	**District Judge**	**Sessions Judge** (same person; capital sentence needs **HC confirmation**)
Middle	Civil Judge (Senior Division)	Chief Judicial Magistrate
Lowest	Civil Judge (Junior Division) / Munsiff	Judicial Magistrate

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.5 Bank B — Superintendence, withdrawal and control over the district judiciary

HIGH

Foundation · 6.5 Bank B — Superintendence, withdrawal and control over the district judiciary

GS-II Indian Polity

INTRO & ORIGIN

Claim: the HC supervises every court and tribunal beneath it. **Provision: Art 227** — power of superintendence (administrative and judicial) over all courts and tribunals in its territory, **except** those under a law relating to the Armed Forces; it can be exercised **suo motu**. **Mechanism:** keeps subordinate forums within their jurisdiction. **Limitation:** □□ a supervisory, not appellate, power — *Radhey Shyam v. Chhabi Nath* (2015) places civil-court judicial orders under Article 227 rather than Article 226, and *K. Valarmathi v. Kumaresan* (2025) reiterates that supervision cannot supplant statutory trial and appeal.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.5 BANK B — SUPERINTENDENCE, WITHDRAWAL AND CONTROL OVER THE DISTRICT JUDICIARY: RECALL MAP

6.5 Bank B — Superintendence, withdrawal and control over the district judiciary

V

Dimension 1 Claim: the HC supervises every court and tribunal beneath it. Provision: Art 227 — power of superintendence (administrative and judicial) over all cou	**Dimension 2** Claim: the HC can pull up constitutional questions itself. Provision: Art 228 — the HC may withdraw a case from a subordinate court if it involves a s
Dimension 3 Claim: the district judiciary is controlled by the HC, not the executive. Provisions: Art 233 — district judges appointed by the Governor in consultat	**Dimension 4** Current Article 233 control: the constitutional text still distinguishes persons already in Union/State service from outside-service candidates. Rejan

STATIC THEORY

- **Claim:** the HC can pull up constitutional questions itself. **Provision: Art 228** — the HC may **withdraw** a case from a subordinate court if it involves a **substantial question of law as to the interpretation of the Constitution**, decide that question (or the whole case) and return it. **Mechanism:** keeps constitutional interpretation with the HC. **Limitation:** □□ confined to constitutional-interpretation questions.

- **Claim:** the district judiciary is controlled by the HC, not the executive. **Provisions: Art 233** — district judges appointed by the **Governor in consultation with the HC**; **Art 234** — other judicial-service recruits appointed by the Governor per rules made in consultation with the **SPSC and the HC**; **Art 235** — **control** (posting, promotion, leave) over the subordinate judiciary is **vested in the High Court**. **Mechanism:** insulates lower courts from executive control. **Limitation:** □ a **death sentence still requires HC confirmation** — district autonomy is bounded upward.

- **Current Article 233 control:** the constitutional text still distinguishes persons already in Union/State service from outside-service candidates. *Rejanish K.V.* (2025), however, prospectively permits serving judicial officers to compete in direct District-Judge recruitment if the Court's combined seven-year experience, minimum-age and application-date conditions are met. Do not repeat the superseded *Dheeraj Mor* exclusion.

- **Court administration and territorial design: Art 229** places High Court staff appointments with the Chief Justice (or authorised officer), subject to the limited constitutional roles of the Governor; High Court administrative expenses are charged on the State Consolidated Fund. **Art 230** lets Parliament extend or exclude a High Court's jurisdiction over a Union Territory. **Art 237** lets the Governor apply the subordinate-courts chapter to specified classes of magistrates after public notification.

- **Claim:** the subordinate judiciary is a defined three-tier structure below the HC. **Provision/design (Art 233–237):** the **District Judge = Sessions Judge** sits at the top of the district (original + appellate, civil + criminal); below are the **Subordinate/Civil Judge (Senior Division) / Chief Judicial Magistrate**, then the **Munsiff / Civil Judge (Junior Division) / Judicial Magistrate**; metros add **City Civil Courts** and **Metropolitan Magistrates**. **Mechanism:** a graded hierarchy channels appeals upward to the HC. **Limitation:** □□ **"district judge"** is defined widely in **Art 236** (includes additional/joint/assistant district judges, sessions judges, chief judge of a small-cause court, etc.) — do not read it narrowly.

MUST-KNOW FACTS

1. Claim: the district judiciary is controlled by the HC, not the executive. **Provisions: Art 233** — district judges appointed by the **Governor in consultation with the HC**; **Art 234** — other judicial-service recruits appointed by the Governor per rules made in consultation with the **SPSC and the HC**; **Art 235** — **control** (posting, promotion, leave) over the subordinate judiciary is **vested in the High Court**. **Mechanism:** insulates lower courts from executive control. **Limitation:** a **death sentence still requires HC confirmation** — district autonomy is bounded upward.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.5 Bank B — Superintendence, withdrawal and control over the district judiciary

HIGH

Foundation · 6.6 Bank C — Appointment, transfer and the common High Court

GS-II Indian Polity

INTRO & ORIGIN

Claim: HC judges are appointed on the collegium's advice, with narrower qualifications than the SC. **Provisions: Art 217** — appointment by the **President** after consulting the **CJI, the Governor and (except for the CJ) the HC Chief Justice**; qualifications = citizen + **10 years' judicial office OR 10 years as an HC advocate** (**no "distinguished jurist" option**, unlike the SC); retirement at **62**; oath before the **Governor (Art 219)**. **Mechanism:** the SC collegium (**CJI + 2 senior-most**) clears HC names. **Limitation:** □□ the collegium is a judicial creation, not Article text.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.6 BANK C — APPOINTMENT, TRANSFER AND THE COMMON HIGH COURT: RECALL MAP

6.6 Bank C — Appointment, transfer and the common High Court

V

Dimension 1 Claim: HC judges are appointed on the collegium's advice, with narrower qualifications than the SC. Provisions: Art 217 — appointment by the President	**Dimension 2** Claim: transfer is a safeguard that is also a pressure point. Provision: Art 222 — the President may transfer a judge from one HC to another after con
Dimension 3 Claim: one High Court may serve more than one State. Provision: Art 231 (inserted by the 7th Amendment, 1956) allows a common High Court for two or mo	**Dimension 4** Claim: the Constitution provides for continuity when the Bench is short-staffed. Provisions: Art 223 — the President appoints an acting Chief Justice

STATIC THEORY

- **Claim:** transfer is a safeguard that is also a pressure point. **Provision: Art 222** — the President may **transfer** a judge from one HC to another after consulting the CJI; the judge's **consent is not constitutionally required**. **Mechanism:** under the current Memorandum-of-Procedure framework, the CJI consults the four senior-most Supreme Court judges and the Chief Justices of the transferor and transferee High Courts. **Limitation:** □□ transfers must serve public interest rather than punishment — an independence concern flagged since *Sankalchand Sheth* (1977) and the Judges Cases.

- **Claim:** one High Court may serve more than one State. **Provision: Art 231** (inserted by the **7th Amendment, 1956**) allows a **common High Court** for two or more States or a State and a UT. **Mechanism:** e.g., the **Punjab & Haryana HC** and the **Bombay HC** (Maharashtra, Goa and UTs). **Limitation:** □ there are **25 High Courts**, so "one HC per State" is wrong.

- **Claim:** the Constitution provides for continuity when the Bench is short-staffed. **Provisions: Art 223** — the President appoints an **acting Chief Justice** when the office is vacant or the CJ is absent; **Art 224** — **additional judges** (for a temporary rise in business) and **acting judges** (for an absent permanent judge), holding office up to age **62**; **Art 224A** — the CJ may, with the President's prior consent, request a **retired HC judge** to **sit and act** in the HC. **Mechanism:** manages workload and vacancies without diluting the appointment safeguards. **Limitation:** □□ these are stop-gaps; an Art 224A retiree is not deemed a serving HC judge.

MUST-KNOW FACTS

1. Claim: one High Court may serve more than one State. **Provision: Art 231** (inserted by the **7th Amendment, 1956**) allows a **common High Court** for two or more States or a State and a UT. **Mechanism:** e.g., the **Punjab & Haryana HC** and the **Bombay HC** (Maharashtra, Goa and UTs). **Limitation:** there are **25 High Courts**, so "one HC per State" is wrong.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.6 Bank C — Appointment, transfer and the common High Court

HIGH

Foundation · 6.7 Mechanism, institutional incentives and consequences

GS-II Indian Polity

INTRO & ORIGIN

Why Art 226 is the busier court: because it covers ordinary legal rights and reaches the litigant locally, the HC absorbs the bulk of constitutional and administrative-law litigation; the SC largely hears appeals/SLPs above it.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.7 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES: RECALL MAP

6.7 Mechanism, institutional incentives and consequences

V

Dimension 1 Why Art 226 is the busier court: because it covers ordinary legal rights and reaches the litigant locally, the HC absorbs the bulk of constitutional a	**Dimension 2** Why control sits with the HC: vesting posting, promotion and discipline of the district judiciary in the HC (Art 235) removes the executive's leverage
Dimension 3 Consequence: the HC is simultaneously a rights court, a supervisory authority and the administrative head of the State judiciary; overload in any of t	**Dimension 4** Incentive tension in transfers: □□ the transfer power (Art 222) can rationalise workloads and break local entrenchment, but the same lever can be perc

STATIC THEORY

- **Why control sits with the HC:** vesting posting, promotion and discipline of the district judiciary in the HC (Art 235) removes the executive's leverage over the judges who try most cases — the structural core of independence at the ground level.

- **Consequence:** the HC is simultaneously a rights court, a supervisory authority and the administrative head of the State judiciary; overload in any of these roles (especially pendency) degrades all three.

- **Incentive tension in transfers:** □□ the transfer power (Art 222) can rationalise workloads and break local entrenchment, but the same lever can be perceived as pressure on an inconvenient judge — which is why the collegium, not the executive alone, controls it.

- **Why superintendence is used sparingly:** □□ Art 227 lets the HC keep every subordinate forum within jurisdiction, but if used to re-decide facts it would collapse the appeal structure — so the self-restraint is functional, not merely stylistic.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.7 Mechanism, institutional incentives and consequences

HIGH

Foundation · 6.8 Criticism, counter-argument, variation and implementation constraints

GS-II Indian Polity

INTRO & ORIGIN

All India Judicial Service (AIJS) debate: Art 312 lets Parliament create an AIJS on a Rajya Sabha resolution, but **not for any post below district judge (Art 312(3))**. □□ *For:* national merit recruitment, faster filling of vacancies, uniform standards, diversity. *Against:* it erodes HC control (Art 235) and the State role (Art 233/234), raises language and local-law barriers, and several States and HCs oppose it — so there is **no consensus**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.8 CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS: RECALL MAP

6.8 Criticism, counter-argument, variation and implementation constraints

V

Dimension 1 All India Judicial Service (AIJS) debate: Art 312 lets Parliament create an AIJS on a Rajya Sabha resolution, but not for any post below district judg	**Dimension 2** Pendency and vacancies: □ a large share of India's pending cases sits in the High Courts, and HC judge vacancies persist against sanctioned strength (
Dimension 3 Access-to-justice constraint: □ NALSA/SLSA/DLSA under the Legal Services Authorities Act, 1987 and Lok Adalats (Art 39A) widen access, but they supple	**Dimension 4** Independence-in-practice variation: □□ transfer policy, collegium delays and State cooperation on infrastructure vary, so the same constitutional desi

STATIC THEORY

- **Pendency and vacancies:** □ a large share of India's pending cases sits in the High Courts, and HC judge vacancies persist against sanctioned strength (verify current figures before citing). □□ The reply to "tribunalise or expand AIJS" is that the binding constraint is appointments, infrastructure and case management, not a shortage of forums.

- **Access-to-justice constraint:** □ **NALSA/SLSA/DLSA** under the **Legal Services Authorities Act, 1987** and **Lok Adalats** (Art 39A) widen access, but they supplement rather than substitute the HC's constitutional role.

- **Independence-in-practice variation:** □□ transfer policy, collegium delays and State cooperation on infrastructure vary, so the same constitutional design delivers unevenly across HCs.

- **Subordinate-judiciary constraint:** □□ even where Art 235 vests control in the HC, actual recruitment depends on the **State Public Service Commission and State finances (Art 233/234)**, so filling district vacancies is a shared responsibility the HC cannot discharge alone.

MUST-KNOW FACTS

1. Access-to-justice constraint: NALSA/SLSA/DLSA under the **Legal Services Authorities Act, 1987** and **Lok Adalats** (Art 39A) widen access, but they supplement rather than substitute the HC's constitutional role.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.8 Criticism, counter-argument, variation and implementation constraints

HIGH

Foundation · 6.9 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Writ-power verdict: "Article 226 makes the High Court the wider of the two constitutional courts in purpose, and *L. Chandra Kumar* makes that power un-removable; the High Court is therefore the everyday guardian of both fundamental and ordinary legal rights."

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.9 VERDICT SCAFFOLDS: RECALL MAP

6.9 Verdict scaffolds

V

Dimension 1 Writ-power verdict: "Article 226 makes the High Court the wider of the two constitutional courts in purpose, and L. Chandra Kumar makes that power un-	**Dimension 2** Independence verdict: "By vesting control of the district judiciary in the High Court (Article 235) and protecting judges through appointment, tenure
Dimension 3 AIJS verdict: "The All India Judicial Service promises uniform quality but tests the federal balance of Articles 233–235; it is worth pursuing only in	**Dimension 4** Access verdict: "The High Court's writ jurisdiction guarantees the right to a remedy, but NALSA, Lok Adalats and the clearing of vacancies determine t

STATIC THEORY

- **Independence verdict:** "By vesting control of the district judiciary in the High Court (Article 235) and protecting judges through appointment, tenure and transfer safeguards, the Constitution builds independence into the State judiciary — but the guarantee is only as strong as the vacancies that are filled and the courts that are funded."

- **AIJS verdict:** "The All India Judicial Service promises uniform quality but tests the federal balance of Articles 233–235; it is worth pursuing only in a form that preserves High Court control and accommodates local language and law."

- **Access verdict:** "The High Court's writ jurisdiction guarantees the *right* to a remedy, but NALSA, Lok Adalats and the clearing of vacancies determine the *reality* of access — the constitutional promise and its delivery must be judged together."

- **Superintendence verdict:** "Articles 227 and 235 make the High Court the head, not merely the apex, of the State judiciary; its authority over subordinate courts is what turns a hierarchy of courts into a single, independent judicial system."

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.9 Verdict scaffolds

HIGH

Foundation · 6.10 Prelims close-option distinctions · Table 1.1

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Art 32 vs Art 226	Art 32 = a **FR**, only for FRs, all-India; Art 226 = a **power**, for FRs **and other purposes**, territorial (extended by the 15th Amdt) — **Art 226 is wider in purpose**
Art 226 vs Art 227	**226** = issue writs (needs a petition); **227** = superintendence over courts/tribunals (can be **suo motu**), excludes Armed-Forces tribunals
HC vs SC retirement age	HC judge retires at **62**; SC judge at **65**
"Distinguished jurist"	An eligibility route for the **SC only**, **not** the HC
Oath before whom	HC judge takes oath before the **Governor (Art 219)**; the President appoints
District judge appointment	**Art 233** — by the **Governor in consultation with the HC**; not by the HC alone and not by the SPSC
Direct District-Judge eligibility	*Rejanish K.V.* (2025) prospectively allows qualifying serving judicial officers; do not repeat the superseded *Dheeraj Mor* bar
Entry-level Civil Judge recruitment	*All India Judges Association* (2025) restored a prospective **three-year Bar-practice** condition; this is current case law, not Article 234 text

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.10 Prelims close-option distinctions

HIGH

Foundation · 6.10 Prelims close-option distinctions · Table 1.2

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Control over subordinate courts	**Art 235** vests it in the **High Court**, not the State executive
Number of High Courts	**25**, but some are **common** to two+ States/UTs (Art 231) — not one per State
Art 228	**Withdrawal** of a case involving a **substantial constitutional-interpretation question** — not a general appeal power
Common HC source	**Art 231**, inserted by the **7th Amendment, 1956**
Additional / acting / retired judges	**Art 224** additional & acting judges; **Art 223** acting Chief Justice; **Art 224A** retired judge invited to sit — do not confuse the three
Transfer of a HC judge	**Art 222** — by the **President** (through the CJI-led collegium); the judge's **consent is not required**
Writ against whom	**Mandamus** never lies against a **private individual**; **habeas corpus** can run even against a **private** detainer
Prohibition vs certiorari	**Prohibition** stops proceedings **midway**; **certiorari quashes** a completed order — both target **jurisdictional** error

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.10 Prelims close-option distinctions

HIGH

Foundation · 6.10 Prelims close-option distinctions · Table 1.3

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
HC judge removal	Same route as an SC judge — by the **President after a Parliamentary address (Art 217(1)(b) r/w Art 124(4) procedure and the Judges (Inquiry) Act, 1968)**; no separate lower standard

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.10 Prelims close-option distinctions

HIGH

Foundation · 6.11 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 25 High Courts; strength is **not fixed** (the President determines the number of judges); HC judges retire at **62**. **Art 226 is wider than Art 32 in purpose** (FRs + other purposes) but **narrower in territorial reach**; the 15th Amendment (1963) extended Art 226 to where the cause of action arises. Judicial review under **Art 226/227 is basic structure** (*L. Chandra Kumar*, 1997) — it cannot be excluded by statute or by creating a tribunal.

INTRO & ORIGIN

 Do **not** state live HC vacancy counts as settled facts. The dated **1 July 2026** DoJ snapshot is **1,122 sanctioned, 781 working and 341 vacant**; re-verify before later reuse.

Foundation learning layer: concepts → constitutional detail → UPSC application.

6.11 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

6.11 Factual-risk and current-status controls

V

Dimension 1 Do not state live HC vacancy counts as settled facts. The dated 1 July 2026 DoJ snapshot is 1,122 sanctioned, 781 working and 341 vacant; re-verify	**Dimension 2** The AIJS cannot cover posts below district judge (Art 312(3)); it is a proposal, not an existing service — do not describe it as operational.
Dimension 3 Distinguish Constitution text (Art 214–237) from judicial interpretation (collegium, basic structure, transfer norms) and statute (Legal Services A	**Dimension 4** Case law must be an exact proposition: L. Chandra Kumar protected HC review of decisions of Articles 323A/323B tribunals; it did not abolish tribun

STATIC THEORY

- The **AIJS cannot cover posts below district judge (Art 312(3))**; it is a **proposal**, not an existing service — do not describe it as operational.

- Distinguish Constitution text (Art 214–237) from judicial interpretation (collegium, basic structure, transfer norms) and statute (Legal Services Authorities Act 1987); the collegium and the Memorandum of Procedure are not in the constitutional text.

- Case law must be an exact proposition: *L. Chandra Kumar* protected HC review of decisions of **Articles 323A/323B tribunals**; it did not abolish tribunals or convert review into a merits appeal.

- Do not confuse the **five writs**: *mandamus* commands a duty, *certiorari* quashes a completed order, *prohibition* stops proceedings midway, *habeas corpus* tests detention, *quo warranto* challenges an office-holder — mixing these is a common Prelims trap.

MUST-KNOW FACTS

1. The **AIJS cannot cover posts below district judge (Art 312(3))**; it is a **proposal**, not an existing service — do not describe it as operational.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → 6.11 Factual-risk and current-status controls

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Constitutional map: *Articles 214-237 divide into Articles 214-231 governing High Courts and Articles 233-237 governing govern the subordinate judiciary. Article 214 does not produce one court for every State because Article 231 permits Parliament to establish a common High Court for two or more States or for States and Union Territories.* ***Judges and independence:*** *Article 217 separates appointment, qualification, tenure and consultation; Article 218 applies specified Supreme Court safeguards; Articles 219-224A cover oath, practice, salaries, transfer, acting/additional judges and retired judges. High Court judges retire at sixty-two.* ***Jurisdiction firewall:*** *Article 225 preserves inherited jurisdiction subject to the Constitution and law. Article 226 authorises writs for Fundamental Rights and any other purpose, subject to territorial cause-of-action rules; Article 227 is superintendence, not a substitute statutory appeal. Article 215 makes each High Court a court of record with contempt power.* ***Review doctrine:*** *L. Chandra Kumar (1997) preserves Articles 226/227 review over tribunal decisions as part of the Basic Structure. Whirlpool (1998) states the recognised alternative-remedy exceptions. Radhey Shyam (2015) keeps judicial orders of civil courts outside Article 226 while Article 227 supervision remains available within its limits.* ***Subordinate recruitment:*** *Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court; Article 234 governs recruitment below district judge through Governor- made rules after State PSC and High Court consultation. Articles 236-237 define the chapter's reach.* ***Current Article 233 rule:*** *Rejanish K.V. v. K. Deepa, 2025 INSC 1208, prospectively overruled Dheeraj Mor's categorical exclusion. Qualifying serving judicial officers may compete in direct District-Judge recruitment under the combined-experience, minimum-age and application-date conditions stated by the Court.* ***Control and separation:*** *Article 235 vests control over district and subordinate courts in the High Court; Article 50 directs separation of the judiciary from the executive. State executive participation in appointment does not permit control over judicial careers or adjudication.* ***AIJS boundary:*** *Article 312 permits an All India Judicial Service only after the Rajya Sabha's two-thirds present-and-voting resolution and parliamentary law; Article 312(3) excludes posts below district judge. No AIJS exists as of 5 September 2026.* ***Current capacity control:*** *India has twenty-five High Courts. The Department of Justice snapshot dated 1 July 2026 records 1,122 sanctioned posts, 781 working judges and 341 vacancies; working strength, vacancy and pendency are dynamic and must retain their date.* ***Four-ledger/PYQ control:*** *direct and routed 2018-2025 High Court, tribunal, Lok Adalat, collegium and subordinate-judiciary demands were retained without fabricating a direct route. Topic 18 owns Supreme Court detail; Topic 54 owns full Lok Adalat and other-court architecture.*

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 34–36 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/High-Court.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 34–36 (direct check of the local Sixth Revised Edition PDF).

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/High-Court.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — THE HIGH COURT (Art 214–231)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE HIGH COURT (Art 214–231).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → PART A — THE HIGH COURT (Art 214–231)

HIGH

Advanced · Organisation □

GS-II Indian Polity

INTRO & ORIGIN

□ In the **integrated judiciary**, the HC sits below the SC, above subordinate courts. First HCs at **Calcutta, Bombay, Madras (1862)**, Allahabad (1866). **Art 214** — an HC for each state, but the **7th Amdt (1956)** allows a **common HC for two+ states / states + UT**. At present **25 High Courts**; territorial jurisdiction follows the Constitution and parliamentary/reorganisation law, so it is not invariably co-terminus with one State. **Articles 214–231 (Part VI).**

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. In the **integrated judiciary**, the HC sits below the SC, above subordinate courts. First HCs at **Calcutta, Bombay, Madras (1862)**, Allahabad (1866). **Art 214** — an HC for each state, but the **7th Amdt (1956)** allows a **common HC for two+ states / states + UT**. At present **25 High Courts**; territorial jurisdiction follows the Constitution and parliamentary/reorganisation law, so it is not invariably co-terminus with one State. **Articles 214–231 (Part VI).**

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Organisation □

HIGH

Advanced · Composition & appointment □

GS-II Indian Polity

INTRO & ORIGIN

□ CJ + judges **as the President deems necessary** (strength not fixed). Appointed by the **President** — CJ after consulting **CJI + State Governor**; other judges also after consulting the **HC Chief Justice**. At the originating HC, the Chief Justice consults the **two seniormost HC colleagues**. At the Supreme Court stage, the collegium for an HC appointment is **CJI + 2 seniormost SC judges**; HC-judge transfers require broader consultation including four senior SC judges (Third Judges Case, 1998). NJAC was struck down in 2015.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ The Department of Justice statement dated **1 July 2026** records **1,122 sanctioned posts, 781 working judges and 341 vacancies** across the High Courts. Quote these only with the date.

MUST-KNOW FACTS

1. CJ + judges **as the President deems necessary** (strength not fixed). Appointed by the **President** — CJ after consulting **CJI + State Governor**; other judges also after consulting the **HC Chief Justice**. At the originating HC, the Chief Justice consults the **two seniormost HC colleagues**. At the Supreme Court stage, the collegium for an HC appointment is **CJI + 2 seniormost SC judges**; HC-judge transfers require broader consultation including four senior SC judges (Third Judges Case, 1998). NJAC was struck down in 2015.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Composition & appointment □

HIGH

Advanced · Qualifications, tenure, removal □

GS-II Indian Polity

INTRO & ORIGIN

□ Citizen + **10 yrs judicial office OR 10 yrs HC advocate** (NO "distinguished jurist" option, unlike SC; no minimum age). Oath before the **Governor**. Retires at **62** (SC = 65). Removal = **same as SC** (special majority, Judges Enquiry Act 1968). Also vacates on elevation to SC or **transfer to another HC**. □□ A judge can be **transferred** by the President (after consulting CJI).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Citizen + **10 yrs judicial office OR 10 yrs HC advocate** (NO "distinguished jurist" option, unlike SC; no minimum age). Oath before the **Governor**. Retires at **62** (SC = 65). Removal = **same as SC** (special majority, Judges Enquiry Act 1968). Also vacates on elevation to SC or **transfer to another HC**. □□ A judge can be **transferred** by the President (after consulting CJI).

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Qualifications, tenure, removal □

HIGH

Advanced · Jurisdiction □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Type	Scope
□ **Original**	admiralty, contempt, election disputes, **FR enforcement**; 4 HCs (Cal/Bom/Mad/Del) have original **civil** jurisdiction
□ **Writ (Art 226)**	5 writs — for FRs **AND "any other purpose"** → **wider than SC's Art 32**; concurrent with SC. *Chandra Kumar (1997): HC writ power is part of **basic structure**, cannot be excluded*
□ **Appellate**	civil & criminal appeals from subordinate courts; **death sentence needs HC confirmation**
□ **Supervisory (Art 227)**	superintendence over all courts/tribunals in territory (except Armed-Forces-law forums); can be **suo motu**, but is not a substitute appeal
□ **Control over subordinate courts**	Article 235 posting, promotion, leave and disciplinary control; Article 228 constitutional withdrawal is a separate power
□ **Court of Record (Art 215)**	precedents + contempt power
□ **Judicial Review**	strike down unconstitutional laws/orders

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Jurisdiction □

HIGH

Advanced · PART B — SUBORDINATE COURTS (Art 233–237) □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Tier	Civil side	Criminal side
□ Top	**District Judge**	**Sessions Judge** (same person)
□ Middle	Civil Judge (Senior Division)	Chief Judicial Magistrate
□ Lowest	Civil Judge (Junior Division) / Munsiff	Judicial Magistrate

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → PART B — SUBORDINATE COURTS (Art 233–237) □

HIGH

Advanced · PART B — SUBORDINATE COURTS (Art 233–237) □

GS-II Indian Polity

INTRO & ORIGIN

□ Structure laid down by **states**; broadly **three tiers** below the HC:

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — SUBORDINATE COURTS (ART 233–237) □: RECALL MAP

PART B — SUBORDINATE COURTS (Art 233–237) □

V

Dimension 1
□ Structure laid down by states; broadly three tiers below the HC:

Dimension 2
□ District Judge — highest judicial authority in the district; original + appellate (civil & criminal); as Sessions Judge can award capital punishment

Dimension 3
□ Rejanish K.V. v. K. Deepa (2025) prospectively overruled Dheeraj Mor: qualifying serving judicial officers may compete in direct District-Judge recr

STATIC THEORY

- □ **District Judge** — highest judicial authority in the district; original + appellate (civil & criminal); as **Sessions Judge** can award **capital punishment** (subject to **HC confirmation**). **Art 233** — district judges appointed by the **Governor in consultation with the HC**. Metro cities: **City Civil Courts** & **Metropolitan Magistrates**; also **Small Causes Courts**, **Nyaya Panchayats/Gram Kutchery**.

- □ *Rejanish K.V. v. K. Deepa* (2025) prospectively overruled *Dheeraj Mor*: qualifying serving judicial officers may compete in direct District-Judge recruitment under the Court's combined experience, age and application-date conditions. *All India Judges Association* (20 May 2025) restored a prospective three-year Bar-practice requirement for Civil Judge (Junior Division) recruitment and revised promotional channels.

MUST-KNOW FACTS

1. Structure laid down by **states**; broadly **three tiers** below the HC:

2. District Judge — highest judicial authority in the district; original + appellate (civil & criminal); as **Sessions Judge** can award **capital punishment** (subject to **HC confirmation**). **Art 233** — district judges appointed by the **Governor in consultation with the HC**. Metro cities: **City Civil Courts** & **Metropolitan Magistrates**; also **Small Causes Courts**, **Nyaya Panchayats/Gram Kutchery**.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → PART B — SUBORDINATE COURTS (Art 233–237) □

HIGH

Advanced · NALSA (Art 39A) □

GS-II Indian Polity

INTRO & ORIGIN

□ **National Legal Services Authority** — under the **Legal Services Authorities Act 1987** (in force **1995**); free legal aid + **Lok Adalats**; tiered NALSA → SLSA → DLSA → Taluk committees. Section 12 categories include women, children, SC/ST persons, persons with disability, persons in custody and disaster victims; the income ceiling is prescribed by the competent authority and must not be quoted as one nationwide timeless amount.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. National Legal Services Authority — under the **Legal Services Authorities Act 1987** (in force **1995**); free legal aid + **Lok Adalats**; tiered NALSA → SLSA → DLSA → Taluk committees. Section 12 categories include women, children, SC/ST persons, persons with disability, persons in custody and disaster victims; the income ceiling is prescribed by the competent authority and must not be quoted as one nationwide timeless amount.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → NALSA (Art 39A) □

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: There are 25 HCs, one per state

CORRECT: 25 HCs but some are **common** to 2+ states/UTs (not 1-per-state).

WRONG: A "distinguished jurist" can be an HC judge

CORRECT: only for the SC, not HC.

WRONG: HC judge retires at 65

CORRECT: 62 (SC = 65).

WRONG: HC writ jurisdiction is narrower than SC's

CORRECT: wider (Art 226 covers FRs **and** other purposes).

WRONG: HC judge takes oath before the President

CORRECT: before the **Governor**.

WRONG: District judge is appointed by the HC

CORRECT: by the **Governor in consultation with the HC** (Art 233).

WRONG: Sessions Judge can execute a death sentence directly

CORRECT: needs **HC confirmation**.

MAINS ANGLE

STUDY LINK

High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ □□ **Collegium friction & HC vacancies/pendency** — the dated 1 July 2026 DoJ statement records 1,122 sanctioned posts, 781 working judges and 341 vacancies; recurring reform debates include appointment calendars, district-judiciary recruitment, AIJS and tribunalisation. □ □□ **Lok Adalats & NALSA** drives for pendency reduction; e-Courts and virtual hearings.

INTRO & ORIGIN

□ □□ Debates on **HC judges' transfers** and elevation transparency.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
*Should India create an **All India Judicial Service** for subordinate judiciary recruitment? Discuss. The High Court's writ jurisdiction as a guardian of rights — analyse Art 226 vs Art 32. Judicial pendency: causes and reforms (NALSA, Lok Adalats, fast-track courts, e-Courts).*

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Verified PYQ application

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE
□ ***2024 GS-II Q2 (10 marks, 150 words):*** *"Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases?" Route: statutory conciliation/compromise forum vs consensual private adjudication; Lok Adalat may settle compoundable criminal matters but not non-compoundable offences; arbitration concerns arbitrable civil/commercial disputes, not criminal prosecution.*

STUDY LINK
High Court & Subordinate Courts (Articles 214–237) — ADVANCED / COMPLETE → Verified PYQ application

End of Register Notes - UPSC Agent / Copilot CLI